

Contract assessment

(made by AD, Andrea and Johnny pending)

1. Cancellation penalties are aggressive

Upon signature through April 3, 2026, the cancellation fee is \$506,238 (70%). From April 4 to July 12, it increases to \$578,558 (80%). From July 13 to October 10, it rises to \$650,878 (90%).

More commonly, cancellation fees 6 to 9 months before an event range between 50% and 70%, rather than escalating to 80% starting April 4.

2. AV vendor is expensive and can pile up

\$160 per hour minimum and \$240 per hour for overtime.

Pinnacle Live has the exclusive right to provide AV equipment and services for all meeting and breakout rooms. With 6 to 8 breakout rooms, AV costs could become very expensive. A Pinnacle Live liaison must also be present during load in, event operation, and load out. The other hotel (Hyatt) was more flexible on these points.

If we do not use Pinnacle AV, we lose the 20% AV discount and the complimentary meeting room internet. Note that since this was written, we have negotiated these clauses and they have been removed.

The good news is that there is a force majeure clause.

Overall, aside from the AV issue, which we should price carefully with the hotel and possibly limit by avoiding filming events, it looks like a good deal. If we bring our own crew for the main room, which will likely be cheaper, we should try to negotiate free internet in the meeting room anyway.

Paradise Point

San Diego's Conference Destination

GROUP SALES AGREEMENT

DESCRIPTION OF GROUP AND EVENT

The following represents an agreement between Paradise Point, 1404 Vacation Road, San Diego, CA 92109 ("HOTEL") and Institute of Noetic Sciences (IONS) ("Group").

ORGANIZATION: Institute of Noetic Sciences (IONS)

CONTACT:

Contact Name: Johnny Calvert
Title: CFO
Address: 7250 Redwood Blvd, Suite 208
Novato, CA 94945

Phone#:

Email: jcalvert@noetic.org

NAME OF EVENT: The Science of Consciousness Conference 2026

PROGRAM DATES: Saturday, October 10, 2026 through Frida, October 16, 2026

GUEST ROOM COMMITMENT

Once this contract is accepted, we will remove from our inventory and consider sold to you for your use room nights pursuant to the following arrival and departure pattern:

				SAT	SUN	MON	TUE	WED	THU
Room Type	Room Rate	Resort Fee	Inclusive Rate	10/10/26	10/11/26	10/12/26	10/13/26	10/14/26	10/15/26
Run of House	\$249.00	\$0.00	\$249.00	192	300	400	400	400	400
Bungalow Suite	\$249.00	\$0.00	\$249.00		40	40	40	40	40
Presidential Suite North	\$249.00	\$0.00	\$249.00		1	1	1	1	1
Presidential Suite South	\$249.00	\$0.00	\$249.00		1	1	1	1	1
Staff Rooms	\$0.00	\$0.00	\$0.00	8	8	8	8	8	8
TOTAL				200	350	450	450	450	450

Total Room Nights: 2,350

Total Rooms Revenue: \$573,198.00

Hotel confirms the above **net non commissionable** inclusive rate (commissionable rate is based on room rate and not resort fee) is subject to tax, which is currently 12.75%, applicable California Tourism Assessment Fee, which is currently 0.3%, and the San Diego Tourism District Assessment, which is currently 2% (*subject to change*). These rates do not include the overnight parking fee discounted to **\$20.00** for the Group (standard rate cost is \$49.00 per car, per night).

There is an additional per person charge of \$20.00 per night for each adult over two (2) per room. Guestrooms have a maximum occupancy of four (4) adults per room.

CHECK-IN | CHECK-OUT

Guest accommodations will be available at 4:00pm on arrival day and reserved until 11:00am on departure day. Any attendee wishing special consideration for late checkout should inquire at the front desk on the day of departure. Should the Hotel allow for late check-out, it may impose a half day rate.

GROUP RATE AVAILABILITY (above contracted room block)

Guest room requests, above and beyond the contracted room block, including pre and post rooms, will be honored at the group rate based on contracted room type availability basis at the time of request and at the sole discretion of the Hotel.

RESORT AMENITIES FEE

The daily Resort Amenities Fee has been **WAIVED** per room, per night (standard rate is \$46.00 per room, per night value), and includes:

High-speed wireless internet	Unlimited use of 5 heated pools (including one adults-only retreat) and the fitness center
Local and domestic phone calls	Island Yoga and Meditation
Two reusable bottles of water in guestroom	Sound bath meditation
Mission Bay Bike Tour	2 Pickleball courts
Basketball court	18-Hole miniature golf course
Spikeball	2 Tennis courts
Volleyball	Lawn checkers
Cornhole	Ping pong
Friendship Bracelets	Football on the beach
Seashell & Rock Painting	Seasonal Activities

EARLY DEPARTURE FEE

In the event that a guest who has reserved a room within your block checks out prior to the guest's reserved checkout date, an early departure fee of one (1) night room and tax will be charged to that guest's individual account. Guests wishing to avoid this fee must advise the hotel at or before check-in. The hotel will deduct any such fees that are collected from any amount you may owe as sleeping room attrition.

FEES FOR ADDITIONAL SERVICES

The Hotel provides a variety of facilities and services not specifically described in this contract, which are available to groups and individuals at additional charge.

SPECIAL CONCESSIONS

In consideration of the Room Revenue Commitment and the functions identified on the Function Information Agenda/Event Agenda, Hotel will provide Group with the following special concessions:

- Complimentary meeting space rental with Food & Beverage minimum of \$150,000.00, excluding tax and service charge being met
- 10% discount on published Banquet Menu food & non-alcoholic beverage pricing provided Food & Beverage minimum is met. Gratuity and service charge will be billed based on full retail menu prices. The Food and Beverage discount will not apply to specialized menus or other discounted options
- 20% discount on published A/V pricing
- Discounted overnight self-parking to \$20.00 per car, per night (valued at \$49.00 per car, per night)
- Waived resort amenities fee (valued at \$46.00 per room, per night)
- Complimentary (2.5 mbps) internet access in meeting space
- Complimentary water stations, pencils, pads, and pens provided by Hotel in all meeting rooms
- Twenty (20) complimentary Hotel's choice VIP welcome amenities valued at \$40 per amenity
- 10% discount on Spa Services
- Complimentary Luggage/Bag Storage for Attendees
- Presidential Suite North and South at the group rate over the dates noted in the room block grid.

- Eight (8) Staff Rooms complimentary over the dates noted in the room block grid. Additional nights at the group rate

ADJUSTMENTS TO CONCESSIONS

In the event of reductions in the Room Revenue Commitment of more than 10%, the Hotel may adjust any concessions previously offered in this Agreement, including those concessions offered on a complimentary basis, and may also adjust the Function Space in direct proportion to the reduction in the Room Night Commitment.

ROOMS ATTRITION

Group agrees that it will pay Hotel attrition penalties for cumulative room revenue below **80%** of total room revenue (\$458,558.40), as a reasonable estimate of the harm the attrition will cause the Hotel. Hotel agrees that after receiving this payment, it will not seek additional damages.

RESERVATION METHOD

Individual Reservations/Rooming List must be made no later than: **Thursday, September 10, 2026**. After cut-off date rooms will be released back to hotel for general sale. Reservations will be by:

Combination Call-In & Rooming List – Attendees reservations will be by Individual Call-In. A web-link (Passkey) will be generated and provided for your group to make reservations. Your group attendees may also contact the Hotel directly at 800-344-2626 Monday through Friday between the hours of 8:00am – 6:00pm. Once an individual reservation has been made, any changes should be made through Passkey directly or with our Group Reservations Department. A credit card number or guarantee to the Master Account will be required to secure a room within this block. Other reservations i.e. staff, speakers, VIPs will be by rooming list. Cancellations for individual reservations must be received seven (7) days prior to arrival or one (1) night's room and tax will be assessed.

MASTER ACCOUNT

Master account payment will be arranged accordingly:

- ✓ Pre-payment via credit card, wire transfer and/or check

As per our agreement, the following method(s) of payment will be utilized with the group:

- ✓ Master Account Banquet Charges
- ✓ Individuals Pay Own Guestrooms & Incidental Charges

PAYMENT INFORMATION

Your program is not considered definite until Payment Information is received with a signed contract.

CREDIT CARD PAYMENT: A valid credit card authorization form must be submitted with the signed contract. This card will be charged seventy-two (72) hours prior to arrival if full payment has not already been received. In the unlikely event the card would be declined, another method of payment must be received at that time. In the event that a balance is due after the event, the credit card on file will be charged. As noted, a processing fee will apply to all credit card payments.

CREDIT CARD SURCHARGE: Paradise Point Resort & Spa will apply a processing fee for all event payments due or owed to the hotel under this Agreement and made by way of credit card. The amount of the fee will be equivalent to 3% if using Visa, Mastercard, or Discover and 3.5% if using American Express of the amount on any such payment(s). Please note, credit card surcharge does not apply to authorization holds.

DEPOSIT SCHEDULE: 25% of all estimated charges will be due to Hotel upon execution of this Agreement. In the event neither Direct Billing is approved or requested, or approved Direct Billing amount falls below the estimated Master Account total, 50% of all estimated charges will be due to Hotel one-hundred and eighty (180) days prior to arrival and a payment for all estimated remaining charges must be made no less than twenty-one (21) days prior to arrival. In the event the Hotel does

not receive such payments as set forth herein, the Hotel shall have the option of releasing any space and rooms reserved by providing you with written notice, and Group will remain liable for any cancellation and other similar charges provided in this Agreement.

PAYMENT TYPE	DUE DATE	PAYMENT AMOUNT*
1 st Deposit (25% Down)	With signed contract	\$51,315.94
2 nd Deposit (50% of remaining)	April 13 th , 2026	\$76,973.91
Final Deposit (remaining balance)	21 days prior to arrival	Based on estimated master account

*Payment amounts do not include the credit card surcharge. Should you pay via Visa, Mastercard, or Discover 3% and if using American Express 3.5% will be added to the deposit amount.

(Second and Final Deposits amounts are estimates, based on the anticipated attendance that was discussed with your Sales Manager. These numbers may change based on your final Guaranteed Attendance to be given ten (10) business days in advance of the event and the final deposit will include a 10% contingency for the total Master Account to cover any charges incurred while on property. Any overage will be refunded).

*** Please initial here _____ to confirm that you understand the deposit information and the due dates.**

ANTI-FRAUD DISCLOSURE

Electronic communications such as email, text messages and social media messaging ("Unsecure Electronic Communication"), are neither secure nor confidential. While the Hotel has adopted policies and procedures to aid in avoiding fraud, even the best security protections can still be bypassed by unauthorized parties. Please be advised that the Hotel will never send you any Unsecure Electronic Communication changing the wire instructions originally provided to you from the Hotel or instructing you to provide nonpublic personal information, such as credit card or debit numbers or bank account and/or routing numbers via email, text message or social media message. Communications from the Hotel requesting payment and/or signed authorization form will only come to you via a secure method such as Sertifi or DocuSign.

YOU SHOULD NEVER TRANSMIT NONPUBLIC PERSONAL INFORMATION, SUCH AS CREDIT OR DEBIT CARD NUMBERS OR BANK ACCOUNT OR ROUTING NUMBERS, BY UNSECURED ELECTRONIC COMMUNICATION. EMAILS ATTEMPTING TO INDUCE FRAUDULENT WIRE TRANSFERS ARE COMMON AND MAY APPEAR TO COME FROM A TRUSTED SOURCE. YOU SHOULD ALWAYS CALL THE SALES DEPARTMENT AT THE HOTEL AT 858-581-5923 (NOT USING ANY PHONE NUMBER PROVIDED ON THE WIRE INSTRUCTION SHEET) TO VERIFY ANY WIRE TRANSFER INSTRUCTIONS WITH PRIOR TO WIRING FUNDS.

If you receive any Unsecure Electronic Communication changing the wire instructions or requesting you to provide nonpublic personal information via such Unsecure Electronic Communication, EVEN IF THAT ELECTRONIC COMMUNICATION APPEARS TO BE FROM THE HOTEL, do not respond to it and immediately contact the Hotel to confirm that communication. Such requests, even if they may otherwise appear to be from the Hotel may be part of a scheme to defraud you by stealing funds from you or using your identity to commit a crime. To notify the Hotel of suspected fraud related to your event at the Hotel, contact: sales@paradisepoint.com.

By executing this Agreement containing this Anti-Fraud Disclosure I/we understand that the Hotel will never send me/us any electronic communication changing the wire instructions or instructing me to transfer funds or provide financial account numbers or other nonpublic personal information via electronic communication.

FUNCTION INFORMATION AGENDA/EVENT AGENDA

Based on the requirements outlined by Group, the Hotel has reserved the function space set forth on the below Function Information Agenda/Event Agenda.

Date	Start Time	End Time	Function	Room	Setup	Agr
Sun, 10/11/26	8:00 AM	12:00 PM	Breakout	Paradise Ballroom	Theatre	100
	8:00 AM	12:00 PM	Breakout	Garden Room	Theatre	100
	8:00 AM	12:00 PM	Breakout	Bay View Room	Theatre	100
	8:00 AM	12:00 PM	Breakout	Dockside Room	Theatre	100
	1:00 PM	5:00 PM	Breakout	Paradise Ballroom	Theatre	100
	1:00 PM	5:00 PM	Breakout	Garden Room	Theatre	100
	1:00 PM	5:00 PM	Breakout	Bay View Room	Theatre	100
	1:00 PM	5:00 PM	Breakout	Dockside Room	Theatre	100
	5:00 PM	8:00 PM	General Session	Paradise Ballroom	Theatre	250
	6:00 PM	8:00 PM	Reception	Paradise Terrace	Cocktail	300
Mon, 10/12/26	8:00 AM	11:59 AM	General Session	Paradise Ballroom	Theatre	700
	8:00 AM	11:59 PM	Office	Boardroom	Office	10
	8:00 AM	11:59 PM	Breakout	Mission Bay Gal/Patio/Rm	Classroom	150
	8:00 AM	11:59 PM	Storage	Director's Room	Storage	10
	8:00 AM	11:59 PM	Exhibit	Sunset Ballroom & Deck	Exhibits	120
	8:00 AM	11:59 PM	Breakout	Dockside Room	Theatre	100
	8:00 AM	11:59 PM	Breakout	Bay View Room & Deck	Theatre	100
	8:00 AM	11:59 PM	Breakout	Garden Room	Theatre	100
	12:00 PM	1:00 PM	Lunch	Sunset Terrace	Rounds	200
	12:00 PM	1:00 PM	Lunch	Paradise Terrace	Rounds	400
Tue, 10/13/26	8:00 AM	11:59 AM	General Session	Paradise Ballroom	Theatre	700
	8:00 AM	11:59 PM	Breakout	Garden Room	Theatre	100
	8:00 AM	11:59 PM	Breakout	Bay View Room	Theatre	100
	8:00 AM	11:59 PM	Breakout	Mission Bay Gal/Patio/Rm	Classroom	150
	8:00 AM	11:59 PM	Breakout	Dockside Room	Theatre	100
	8:00 AM	11:59 PM	Office	Boardroom	Office	10
	8:00 AM	11:59 PM	Exhibit	Sunset Ballroom	Exhibits	120
	8:00 AM	11:59 PM	Storage	Director's Room	Storage	10
	12:00 PM	1:00 PM	Lunch	Sunset Terrace	Rounds	200
	12:00 PM	1:00 PM	Lunch	Paradise Terrace	Rounds	400
Wed, 10/14/26	8:00 AM	11:59 AM	General Session	Paradise Ballroom	Theatre	700
	8:00 AM	11:59 PM	Storage	Director's Room	Storage	10
	8:00 AM	11:59 PM	Breakout	Garden Room	Theatre	100
	8:00 AM	11:59 PM	Exhibit	Sunset Ballroom	Exhibits	120
	8:00 AM	11:59 PM	Office	Boardroom	Office	10
	8:00 AM	11:59 PM	Breakout	Dockside Room	Theatre	100
	8:00 AM	11:59 PM	Breakout	Bay View Room & Deck	Theatre	100
	8:00 AM	11:59 PM	Breakout	Mission Bay Gal/Patio/Rm	Classroom	150
	12:00 PM	1:00 PM	Lunch	Paradise Terrace	Rounds	400
	12:00 PM	1:00 PM	Lunch	Sunset Terrace	Rounds	200
Thu, 10/15/26	8:00 AM	11:59 AM	General Session	Paradise Ballroom	Theatre	700
	8:00 AM	11:59 PM	Breakout	Garden Room	Theatre	100
	8:00 AM	11:59 PM	Breakout	Bay View Room	Theatre	100
	8:00 AM	11:59 PM	Breakout	Mission Bay Gal/Patio/Rm	Classroom	150
	8:00 AM	11:59 PM	Breakout	Dockside Room	Theatre	100
	8:00 AM	11:59 PM	Storage	Director's Room	Storage	10
	8:00 AM	11:59 PM	Office	Boardroom	Office	10
	8:00 AM	11:59 PM	Exhibit	Sunset Ballroom	Exhibits	120
	12:00 PM	1:00 PM	Lunch	Paradise Terrace	Rounds	400

Date	Start Time	End Time	Function	Room	Setup	Agr
	12:00 PM	1:00 PM	Lunch	Sunset Terrace	Rounds	200
Fri, 10/16/26	8:00 AM	11:59 AM	12:00 PM	Paradise Ballroom	Theatre	700
	8:00 AM	11:59 PM	12:00 PM	Garden Room	Theatre	100
	8:00 AM	11:59 PM	12:00 PM	Bay View Room	Theatre	100
	8:00 AM	11:59 PM	12:00 PM	Mission Bay Gal/Patio/Rm	Classroom	150
	8:00 AM	12:00 PM	Breakout	Dockside Room	Theatre	100
	8:00 AM	12:00 PM	Office	Boardroom	Office	10
	8:00 AM	12:00 PM	Exhibit	Sunset Ballroom & Deck	Exhibits	120
	8:00 AM	12:00 PM	Storage	Director's Room	Storage	10
	12:00 PM	1:00 PM	Lunch	Sunset Terrace	Rounds	200
	12:00 PM	1:00 PM	Lunch	Paradise Terrace	Rounds	400

FOOD AND BEVERAGE MINIMUM

Group agrees that it will provide a minimum food and beverage revenue of **\$150,000.00** (*this does not include administrative charge, labor fees, federal, state or local taxes, or any other fees outside of food & beverage product sales*) as part of the Event. Should the food and beverage revenue for your function fall below this minimum, Group agrees to pay Hotel the difference.

FOOD AND BEVERAGE POLICIES

Group will be required to sign Banquet Event Orders confirming your individual events, menus, and number of persons to be served. If your scheduled events will not meet your minimum revenue commitment, your Event Coordinator will endeavor to advise you in advance to give you the opportunity to revise/upgrade your events to meet your minimums, but this will not alter your commitment. Final guarantees must be provided no later than 10 business days prior to event start date and may be via email or telephone. If you fail to sign the Banquet Event Orders or provide a final guarantee, you will be charged according to the Banquet Event Orders, or the number of guests served, whichever is higher.

Due to licensing requirements and quality control issues, all food and beverage to be served on the Hotel property must be supplied and prepared by the Hotel. All food and beverage prices are subject to a 27% service charge which includes 18.55% food & beverage staff charge and an 8.45% food & beverage house charge are applied to food & beverage costs. and 7.75% state tax (subject to change without notice). [Please note that the administrative charge is taxable.]

No outside food or beverage may be brought into the Hotel for any purpose without advance written approval by Hotel.

ADMINISTRATIVE CHARGE/TAXES

All food and beverage are subject to applicable taxes (currently 7.75%) in effect on the date(s) of the event and subject to change without notice. All meeting room rental and related services are subject to applicable taxes (currently 7.75%) in effect on the date(s) of the event and subject to change without notice. A 27% service charge which includes 18.55% food & beverage staff charge and an 8.45% food & beverage house charge are applied to food & beverage costs. A 27% staff charge is included in the room rental cost. The food and beverage staff charge of 18.55% and the room rental staff charge of 27% is paid in full to employees servicing the event. The food & beverage house charge of 8.45% is retained by the Hotel and are used to offset the costs of utilities and equipment, and other non-labor expenses. The food & beverage house charge is not a tip or gratuity for services provided by employees and are not distributed to employees. Banquet managers and other banquet employees are not customarily tipped, so tips are not expected.

EVENT OPERATIONS

Pool events are subject to additional charges of \$10.00 per person per event. Any room or event space re-set after an event order is signed will result in a \$500.00 labor fee. Final guaranteed attendance for this function is due ten (10) business days prior to the function date. Final attendance guarantee cannot be decreased within ten (10) business days prior to the function date. Food and Beverage menu selections

cannot be changed within ten (10) business days prior to the function date. If an attendance guarantee is not provided ten (10) business days in advance of the function then the expected number will become the attendance guarantee. All Meeting Rooms must be Unlocked during Event hours (exceptions: re-keyed Office space). Hotel assumes no liability for any items left in the meeting rooms. Changes to the event setup within ten (10) business days of the event date will incur a minimum \$500.00 labor fee per room per change.

CANCELLATION

In the unlikely event that you should decide to cancel this event at any time after execution of this Agreement, the following cancellation charges will apply, which are not a penalty and represents a reasonable effort by the Hotel to establish its loss prospectively and are liquidated damages:

DUE DATE	PAYMENT AMOUNT	PAYMENT TYPE
Date of Signature to April 3 rd , 2026	\$506,238.60	(70% total revenue)
April 4 th , 2026 to July 12 th , 2026	\$578,558.40	(80% total revenue)
July 13 th , 2026 to October 10 th , 2026	\$650,878.20	(90% total revenue)

These payments may be subject to the applicable taxes. Such payment shall be made by certified check or wire transfer and shall accompany your notice of the exercise of this cancellation option. Any attempted exercise of this right without the inclusion of payment, as set forth above, shall be invalid. Proper notice of cancellation is not default rather an exercise of a right under this Agreement to cancel this Agreement without any further obligations.

BELLMAN/HOUSEKEEPING/TRANSPORTATION GRATUITIES

Individuals will be responsible for their own gratuities. Hotel asks group to communicate to their attendees via their website that the suggested gratuities for the Bellmen are \$8.00 per person round trip and Housekeeping gratuities are \$3.00 per room per day.

Any planned group arrivals including sedans, shuttles or busses will have an \$8.00 roundtrip Bellman gratuity charged to the master account. This does not include individuals who arrive via taxi cabs or rideshare services.

Bellmen will be staffed during your conference to provide transportation throughout the resort and can be reached by dialing zero (0) from any house phone.

Room delivery fees are \$10 per delivery, plus applicable taxes.

SIGNAGE

The Paradise Resort and Spa (Hotel) has an exclusive partnership with 858 Graphics to provide all branding which would adhere to any Hotel surface. Signs and banners are not allowed in the Hotel's public areas. In regard to the group's meeting space, all signs must be professionally printed and their placement/posting be pre-approved at least two (2) weeks in advance of arrival date by the Convention Services Department. Nothing shall be posted, nailed, screwed, or otherwise attached to walls, floors, or other parts of the building or furniture. Distribution of gummed stickers or labels is strictly prohibited.

DISPLAYS AND DECORATIONS

All signs, displays, and/or decorations by the client are subject to approval by Paradise Point Resort and the San Diego Fire Department. All signs must be printed in a professional manner. We are not responsible for any loss or damaged property and do not maintain insurance coverage. Floral arrangements & centerpieces may be brought in from an outside vendor. However, a cleaning fee of \$500.00 will apply if confetti, rice, potpourri or glitter is used for decorating. Paradise Point Resort will not permit the affixing of anything to the walls, floors, or ceilings with nails, staples, adhesives, or any other substance without specific permission & supervision of an engineering manager. There will be no stapling, taping, or tacking of any materials to the walls of any Hotel banquet room. All banner hangings must be controlled by the hotel at a charge of \$125.00 per banner for banners ten feet or less; or \$200.00 per banners for banners over ten feet.

FIRE SAFETY

All room sets must be in compliance with the local Fire Department regulations pertaining to occupancy load, mandatory aisles and ceiling clearance and fire exits. Any event having vehicle displayed, fueled cooking demonstrations, laser, exhibits (including tabletop) or extensive productions with staging and props must have a certified permit from the local Fire Marshall. Fog machines are not currently allowed to be used in the hotel, as they may inadvertently set off the fire alarm system. All associated fees for permits, floor plan approval and stand-by fire watch are your responsibility and final approved copies must be received at seven (7) days prior to the event.

EXHIBIT SPACE

The Hotel will offer exhibit space provided the Group forwards a copy their signed agreement with their preferred Exhibit Vendor to the Convention Service Manager no later than eight (8) months prior to the conference dates. This contract must include provisions for table/chair set up and drayage of shipments to and from the Hotel.

Should you choose not to contract with an exhibition company or need additional exhibits, the following stipulations will apply:

- a) The current exhibit fee is \$125.00 (one-time fee for either full or table top). Confirmed rates will be established twelve (12) months prior to convention. This rate includes a 6' banquet table, 2 chairs and waste basket.
- b) Tabletop exhibits up to 10 do not require a Drayage company. More than 10 Tabletop exhibits and any number of booth exhibits require the use of a Drayage company.
- c) Electrical requirements must be provided in writing to the Convention Service Manager no later than thirty (30) days prior to exhibitor set up date.
- d) Power can be ordered and charged to the master account by Customer or, Customer may receive and disseminate an electrical order form to exhibitors to order power directly.

A diagram of the exhibit space must be developed thirty (30) days prior to the event between the Customer and the Convention Service Manager. This diagram will be subject to Fire Marshall Approval and any cost and/or permits required shall be the responsibility of the Customer.

SHIPPING AND RECEIVING

Packages for functions or sleeping rooms may be delivered to the hotel no sooner than three (3) days prior to your arrival date. Arrangements must be made through your Catering/Event Manager for storage. Your packages will be stored and delivered at a cost of \$15 per standard envelope, \$30 for boxes under 25 lbs., \$80 for boxes 25-60lbs, \$130 for boxes 61-100lbs, \$225 for boxes 101lbs or heavier, \$550 per single pallet and \$1000 for any pallet larger than a standard pallet (including doubles). Please see your Catering/Event Manager for a full price sheet. Additional handling fees may apply and any item that is delivered and needs to be moved a second time will incur additional charges. The hotel reserves the right to refuse any incoming or outgoing packages/shipments for any reason.

When shipping packages/boxes to the Hotel, please address them as follows:

Name (of person who will be on-site picking up the packages), Company Name, C/O Paradise Point Hotel, 1404 Vacation Road, San Diego, CA 92109 ATTN: Package Room/ Receiving - Hold for guest arrival, delivery destination & date, Phone, Fax, Number of packages in that shipment. No COD packages will be accepted. The Hotel policies on safe package handling are based on advice from the United States Postal Service (USPS) and the Federal Centers for Disease Control and Prevention (CDC). **All exhibitor boxes, crates or pallets must be arranged through a drayage company and cannot be shipped directly to the hotel, please see event manager for production guidelines**

PROMOTIONAL CONSIDERATIONS

We have the right to review and approve any advertisements or promotional materials in connection with your function which specifically reference the Hotel name or logo.

AUDIO VISUAL

The Paradise Resort and Spa (Hotel) has a "Preferred" agreement with Pinnacle Live to provide all audio visual, lighting, rigging, power and meeting room internet services within the Hotel. Pinnacle Live maintains an office and a complete inventory of state of the art audio, visual equipment and a full time staff on property. Their experience working in coordination with the Hotels' operating departments will ensure your event is a success and allow for seamless communication with your event manager.

In order to facilitate a consistent level of service and maintain the integrity of our meeting space, Pinnacle Live has the exclusive right to provide all audio-visual equipment and services for all meeting and breakout rooms with the exception of meeting space when used for a "General Session" although any rigging and/or banner hanging must be installed and removed exclusively by Pinnacle Live. Under no circumstances will entry to any ceilings be granted to any person.

If an outside AV or production company is used on the property, a Pinnacle Live Liaison will be assigned to coordinate with the outside audio-visual vendor. The Pinnacle Live Liaison will be scheduled to be on-site during the initial load-in, event times/days, and load-out. Liaison fees are billed with a 5-hour minimum for both load-in and load-out, plus a service charge, based on Pinnacle Live's current labor rates of \$160.00 per hour. Standard hours are 8 AM to 5 PM, Monday through Friday. Any labor, including load-in, occurring outside of these hours will incur overtime charges at a rate of \$240.00 per hour. The liaison fee covers the costs of the Pinnacle Live on-site production liaison, who represents the hotel ownership, management, and property, ensuring safety standards are met in accordance with the hotel's liability policy.

Insurance and indemnification requirements must be met by agreeing to our minimum audio-visual standards. All contracted audio-visual concessions offered by the hotel and Pinnacle Live will be forfeited if an outside audio visual provider is contracted.

COMPLIANCE WITH LAWS

This contract is made and to be performed in San Diego, CA, and shall be governed by and construed in accordance with California law. By executing this agreement, Institute of Noetic Sciences (IONS) consents to the exercise of personal jurisdiction over it by the courts of the State of California. This contract is the entire agreement between the parties, superseding all prior proposals both oral and written, negotiations, representations, commitments and other communications between the parties, and may only be supplemented or changed in writing, signed by a representative of the group and the Hotel's General Manager. No representative of the Hotel has been or is authorized to make any representation which varies from the express terms of this contract, though this contract may be supplemented or amended in writing. Group may not assign any benefits arising under or associated in any way with this contract without prior consent of Hotel. In the event of litigation arising from or associated with this contract, the parties agree that the prevailing party therein shall recover its attorneys' fees and costs incurred therein. Any legal action in connection with this agreement shall be brought or maintained only in the courts of the State of California, and only in San Diego County. No food and/or beverage of any kind will be permitted to be brought into the Hotel, or any suite used as a hospitality suite, by the group or any of the group's guests.

ARBITRATION

Any controversy, claim or dispute arising out of or relating to this Agreement, shall be resolved through non-binding mediation and/or binding arbitration conducted in accordance with the rules of the American Arbitration Association or JAMS in the State in which the Hotel is located. The law of the State in which the hotel is located will be the governing law. The arbitration award will be enforceable in any state or federal court. In any arbitration or court proceeding, the prevailing party shall be entitled to recover reasonable attorney's fees and costs. In addition, Group shall be responsible for payment of attorneys' fees and interest associated with the Hotel's efforts to collect monies owed under the terms of this agreement.

INDEMNIFICATION

Each party hereby agrees to indemnify, defend and hold the other harmless from any loss, liability, costs or damages arising from actual or threatened claims or causes of action resulting from the gross negligence or intentional misconduct of such party or its respective officers, directors, employees, agents, contractors, members or participants (as applicable), provided that with respect to officers, directors, employees, and agents, such individuals are acting within the scope of their employment or agency, as applicable.

EEO/AA OBLIGATIONS

Paradise Point is an equal opportunity employer and federal contractor or subcontractor. As applicable, the parties agree that they shall abide by the requirements of 41 CFR Section 60-1.4(a); 41 CFR Section 60-300.5(a); 41 CFR Section 60-741.5(a); and 29 CFR Part 471, Appendix A to Subpart A with respect to affirmative action program and posting requirements, and that these requirements are incorporated herein. These regulations require that covered prime contractors and subcontractors ensure nondiscrimination and take affirmative action in employment to employ and advance qualified individuals without regard to sex, gender identity, sexual orientation, race, color, religious creed, national origin, physical or mental disability and protected veteran status.

INSURANCE

Paradise Lessee Inc. dba Paradise Point Resort & Spa and Group each agree to carry and maintain and provide evidence of liability and other insurance in amounts sufficient to provide coverage against any claims arising from any activities arising out of or resulting from the respective obligations pursuant to this contract. Group's insurance policy shall be in an amount not less than One Million Dollars (\$1,000,000) and shall name Paradise Lessee, Inc. dba Paradise Point Resort & Spa as additional insureds. Damage to the Hotel premises by the Group or appointed contractors will be at the Group's responsibility. The Hotel is not responsible for any loss or damage no matter how caused, to any samples, displays, properties, or personal effects brought into the Hotel.

FORCE MAJEURE

The performance of this Agreement by either party is subject to acts of God, government authority, disaster or other emergencies, any of which make it illegal or impossible to provide the facilities and/or services for your meeting. It is provided that this Agreement may be terminated for any one or more of such reasons by written notice from one party to the other without liability.

ANCILLARY SERVICES

Hotel may provide, or contract with third parties to provide, ancillary services (e.g., A/V, drayage, florists, and exhibits) to Group for additional charges. Group may use its own vendors for such services provided that Group's proposed vendors meet minimum standards established by Hotel, including insurance and indemnification requirements. With respect to audiovisual services, Group will inform Hotel of its decision to bring its own vendor at least sixty (60) days prior to **Saturday, October 10, 2026**, and will sign, and have its audiovisual vendor sign, an acknowledgement of Hotel's Audiovisual Service Standards at least forty-five (45) days prior to **Saturday, October 10, 2026**.

ACCEPTANCE OF CONTRACT

If a signed original of this Agreement has not been received by the Hotel prior to **March 20, 2026**, Hotel shall have the right to contract with other parties for the use of the room block, meeting room and catering services without further notice to Group. In the event Hotel has a request for the rooms requested by Group prior to **March 20, 2026**, and Hotel has not received Group's signed Agreement, Hotel will contact the Group for a decision. In such event, if Hotel does not receive Group's signed Agreement within five (5) working days, Hotel will have the right to contract with another party without any further notice to Group.

WAIVER

If either party agrees to waive its right to enforce any term of this Agreement, it does not waive its right to enforce any other terms of this Agreement.

SIGNATURES

This contract, with exhibits attached (if any) constitutes the entire agreement between the parties and may not be amended or changed unless done so in a writing signed by Hotel and Group.

The undersigned represent that they are authorized to sign and enter into this contract.

Notice may be sent via facsimile transmission and will be considered effective as of the date and time of the facsimile confirmation of transmission.

Approved and authorized by Institute of Noetic Sciences (IONS) :

Name: Johnny Calvert

Signature: _____

Title: CFO

Date: _____

Name: Claudia Welss

Signature: _____

Title: CEO

Date: _____

Approved and authorized by Paradise Point Resort & Spa:

Name: Sandra Torenburg

Signature: _____

Title: National Sales Manager

Date: _____

Name: Deneda Young-Carrick

Signature: _____

Title: *Director of Sales and Marketing*

Date: _____